

25VECV02943 25VECV02943

County: los-angeles

Division: Civil Law and Motion

Department: T

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25VECV02943 Rodriguez v American Honda

On 9/4/2026, Honda objected to having a jury trial because plaintiff did not post fees on time and was willing to have a bench trial. Plaintiff withdrew her demand for a jury and the notice was filed 9/10/2026 at 12:46 p.m. Immediately thereafter, Honda filed a notice of posting jury fees at 1 p.m. and at 2:06 pm withdrew its opposition to the late filed fees by plaintiff.

Honda agreed to a bench trial on 9/4/2026 ["At the final status conference on September 4, 2026, eover defense's preference for a bench trial..."]. This is gamesmanship on the part of defendant which the court will not allow. Honda never demanded a jury in the answer or in a separate pleading until the posting of fees on 9/10/2026.

The court has considered the factors in TriCoast. Here, there was no timely notice that defendant requested a jury trial. Indeed, defendant objected to a jury trial and specifically indicated its preference for a bench trial. Defendant never filed a demand for a jury trial, nor does it appear in its answer. Here, there was no mistake by Honda for failing to timely demand a jury trial. Instead, it specifically wanted a bench trial. Honda's statement that that the failure to timely post fees was not intentional. Given Honda's objection to a jury trial and expressed preference for a bench trial, it is Honda which made a tactical decision not to demand a jury trial or post fees.

This case will proceed as a bench trial today at 10:00.